



CHAPTER xcv.

An Act to confirm a Provisional Order under the A.D. 1930.
Salmon and Freshwater Fisheries Act 1923 —
relating to the River Coquet and other waters.
[4th June 1930.]

WHEREAS under the provisions of the Salmon and 13 & 14
Freshwater Fisheries Act 1923 the Minister of Geo. 5. c. 16.
Agriculture and Fisheries has made a Provisional Order
which needs confirmation by Parliament :

Be it therefore enacted by the King's most Excellent
Majesty by and with the advice and consent of the Lords
Spiritual and Temporal and Commons in this present
Parliament assembled and by the authority of the same
as follows :—

1. The Order as set out in the schedule hereto shall Order in
be and the same is hereby confirmed and all the provisions schedule
thereof shall have full validity and force. confirmed.

2. This Act may be cited as the Coquet Fisheries Short title.
Provisional Order Confirmation Act 1930.

A.D. 1930.

SCHEDULE.

RIVER COQUET FISHERY DISTRICT ORDER 1929.

The Minister of Agriculture and Fisheries by virtue and in exercise of the powers vested in him under the Salmon and Freshwater Fisheries Act 1923 with a view to the improvement and development of the salmon trout and freshwater fisheries in the area defined by this Order hereby makes the following Order for the regulation of such fisheries in that area:—

Short title. 1. This Order may be cited as the River Coquet Fishery District Order 1929 and shall come into force on the date on which it is confirmed.

Definitions. 2.—(1) In this Order unless the context otherwise requires:—
“The Minister” means the Minister of Agriculture and Fisheries;
“The Fishery Board” means the River Coquet Fishery Board constituted by this Order;
“The Fishery District” means the River Coquet Fishery District as defined by this Order;
“The Act of 1923” means the Salmon and Freshwater Fisheries Act 1923;
“Year of election” means the year nineteen hundred and thirty-one or the third year after the preceding year of election as the context requires;
“Appointed day” means the day appointed by the Minister as that on which the Fishery Board shall come into office.

(2) Any document purporting to be signed by one of several joint tenants of a fishery on behalf of himself and the other joint tenants or to be signed by the clerk or secretary of any body corporate or unincorporate being an owner of a fishery on behalf of such body shall unless and until the contrary is proved be treated for the purposes of this Order as signed by all the persons entitled or by the body corporate or unincorporate as the case may be.

DEFINITION OF THE FISHERY DISTRICT AND CONSTITUTION OF THE FISHERY BOARD.

Definition of area affected by Order. 3.—(1) This Order applies to the area described in the First Schedule hereto and more particularly delineated on a map sealed by the Minister in relation to the Order and to all salmon trout and freshwater fisheries therein.

(2) If there is any discrepancy between the map and A.D. 1930.
schedule the map shall prevail.

(3) A copy of the map certified under the Documentary Evidence Acts 1868 to 1895 shall be kept by the Fishery Board at the office of the clerk of that Board and shall be open at all reasonable times to inspection free of charge by any person desiring inspection for any bona fide purpose and this right of inspection shall include a right to make a copy of the map or any part thereof.

4.—(1) For the purposes of this Order a Fishery Board shall be constituted in manner hereinafter appearing as a body corporate under the name of the River Coquet Fishery Board.

Constitution
and incor-
poration of
Fishery
Board.

(2) The Fishery Board shall consist of the following members :—

- (a) Eight members appointed by the council of the administrative county of Northumberland under and in accordance with the provisions of section 46 of the Act of 1923;
- (b) Fifteen members elected in manner provided by this Order by the persons who under this Order are entitled to vote for the election of members representative of private fisheries;
- (c) Members representative of the holders of licences to fish for salmon otherwise than by rod and line in public fisheries within the Fishery District elected under and in accordance with the provisions of sections 47 and 49 of the Act of 1923 which sections shall apply with the modification that after the year nineteen hundred and thirty the elections shall be triennial and the number of members to be elected shall be determined according to the average amount of licence duty paid in the year of election and the two preceding years and with any further necessary modifications;
- (d) Members representative of the holders of licences to fish with rod and line for salmon to be appointed or elected in the same numbers and in the same manner as representative members under section 48 of the Act of 1923 which section shall apply with the necessary modifications and with the further modifications that the number of members to be appointed in the year nineteen hundred and thirty shall be seven and that thereafter the certificate referred to in subsection (4) thereof shall be sent to the Minister on or before the thirtieth day of November in each year;
- (e) Members representative of the holders of licences to fish with rod and line for fish other than salmon elected

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or appointed under and in accordance with the provisions of section 48 of the Act of 1923 with the modifications that the number of members to be appointed in the year nineteen hundred and thirty shall be four and that thereafter the certificate referred to in subsection (4) thereof shall be sent to the Minister on or before the thirtieth day of November in each year;

- (f) Any person who is entered in the register of assessments as an owner of a private fishery or private fisheries assessed for the purpose of fishery contributions under this Order at a total yearly value of fifty pounds or more shall subject to the provisions of this subsection be qualified and entitled to act as an additional member of the Fishery Board.

(3) A person qualified to act as an additional member may nominate by power of attorney an agent to act for him as a member and an agent so nominated shall be entitled so to act until the power is duly determined. A copy of every such nomination and notice of the determination of a nomination shall be sent as soon as may be by the owner making or determining the nomination to the clerk of the Fishery Board and an agent shall not be entitled to act until a copy of his nomination has been received by the clerk.

Where persons qualified to act as additional members are so entitled as joint tenants of a fishery or are a body of persons corporate or unincorporate they shall act only by an agent nominated by them in manner hereinbefore provided who may be one of the persons by whom the nomination is made.

(4) Where an additional member is elected as a member representative of private fisheries he shall not be entitled to vote either by himself or his agent in each capacity on any question to be determined by the Fishery Board and for the purpose of a quorum he and his agent if present shall be counted as one member.

(5) A person may be appointed agent on behalf of not more than five persons qualified to act as additional members and shall be entitled to vote on behalf of each such person but for the purposes of a quorum shall count as one member only.

Election of
members
representa
tive of
private
fisheries.

5. The following rules shall be observed with respect to the election of members representative of private fisheries :—

- (1) The electors shall be the owners of private fisheries assessed for the purpose of fishery contributions under this Order who on the first day of January in any year of election are entered on the register of assessments and

have then paid the fishery contributions (if any) due from them : A.D. 1930.

An infant or a lunatic shall vote by the guardian or committee of the estate as the case may be and joint tenants or a body of persons corporate or unincorporate shall vote by the agent nominated by them :

- (2) Each elector shall be entitled to vote according to the following scale :—

If the fishery or fisheries in respect of which he is entitled to vote is or are assessed for the purposes of this Order at the yearly value of not exceeding ten pounds and not less than five pounds two votes for each member to be elected ;

If the assessment exceeds ten pounds one additional vote for each such member in respect of each additional ten pounds :

Provided that this scale may from time to time be varied by an Order of the Fishery Board confirmed by the Minister after publication thereof in such manner as the Minister may direct :

- (3) An elector may give all his votes to any one of the persons nominated or may distribute them among such of the persons nominated not exceeding the number to be elected as he shall think fit :
- (4) The nomination and election shall be in accordance with Rules 1 to 7 and 9 to 16 inclusive set forth in the Third Schedule to the Act of 1923 with the substitution of " year of election " for " year " in rule 2 :
- (5) Subject to the provisions of subsection (4) of this section section 49 of the Act of 1923 with the exception of subsection (1) thereof shall apply to the mode of election.

6. The term of office of an elected member of the Fishery Board shall be three years and in each third year the elected members shall go out of office on the date upon which they came into office and their places shall on that day be filled by the newly elected members Any member going out of office shall be eligible for re-election.

Term of office of elected members.

ASSESSMENTS AND FINANCIAL PROVISIONS.

7. For defraying expenses incurred in carrying into effect the Act of 1923 and this Order and any Order of the Minister relating to the Fishery District the Fishery Board may impose collect and recover in a summary manner contributions to be paid by the owners of the whole of the fisheries in the Fishery District liable to be assessed and such contribution shall be apportioned on the several owners in proportion to the assessed value of their fisheries :

Imposition collection and recovery of contributions assessed on private fisheries.

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Provisional Order Confirmation Act, 1930.

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Provided that no Order imposing a contribution shall be made at any meeting unless notice of an intention to impose a contribution at such meeting shall have been given in the notice convening the meeting which notice shall be issued one fortnight at least before the date of the meeting and unless there are nine members present and unless such Order is confirmed at a subsequent meeting of the Fishery Board:

Provided also that no Order imposing a contribution exceeding two shillings and sixpence in the pound shall come into force until it has been approved by the Minister.

Fisheries
liable to be
assessed.

8. Except as hereinafter provided the fisheries liable to be assessed shall be all private fisheries in the Fishery District which are of the yearly value of five pounds or upwards. Provided that the Fishery Board may by Order made in the manner hereby prescribed for making an Order imposing a contribution exempt from assessment for such period not exceeding three years as is stated in the Order the fisheries in any part of the Fishery District specified in the Order or any fisheries of which the yearly value is less than the sum specified in the Order. Provided also that the fisheries in any waters in the Fishery District which form part of the water undertaking of a water authority shall while owned by the water authority be exempt from assessment unless and until revenue is derived from the fisheries by the water authority.

Yearly value
for purposes
of assess-
ment.

9. Where a fishery is separately rated to the relief of the poor the rateable value as ascertained for such purpose shall for the purposes of this Order be deemed to be the yearly value of the fishery and when the fishery is not so separately rated the yearly value shall be the rent at which the fishery might reasonably be expected to let from year to year if the tenant undertook to pay all usual tenants' rates and taxes (if any) and to bear the cost of the repairs and insurance and the other expenses (if any) necessary to maintain the fishery in a state to command that rent less the tithe rentcharge payable by the owner:

Provided that where the yearly value of a fishery is less than five pounds the owner of such fishery may if he is the owner of lands having a frontage to any waters over which the fishery board have jurisdiction of not less than four furlongs claim that the yearly value of such fishery shall be deemed to be five pounds.

Assessment
committee.

10.—(1) The Fishery Board shall appoint an assessment committee of not less than seven members of the Board of whom five shall form a quorum and such committee shall cause the yearly value of every fishery which appears to them to be liable to be assessed to be determined either by agreement with the owner thereof or in default of such agreement in manner provided by this section.

(2) If the assessment committee and the owner of a fishery fail to agree as to the yearly value of the fishery the committee

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may provisionally assess the yearly value of a fishery at such amount as they think reasonable and notify such provisional assessment by registered post to the reputed owner of the fishery by notice in the form (Form II) set forth in the Second Schedule hereto. If no objection to such provisional assessment is received by the clerk of the assessment committee within twenty-one days after the date on which the notice was posted the yearly value of the fishery shall for the purposes of this Order be deemed to have been determined by agreement at the amount stated in the notice and the person to whom the notice was sent shall be entered in the register of assessments as the owner of the fishery. If objection is duly made to such provisional assessment and the assessment committee and the owner of the fishery fail to agree as to the yearly value of the fishery the yearly value may be determined by a single arbitrator appointed in default of agreement on the application of either party by the Minister under and in accordance with the provisions of the Arbitration Act 1889 or any statutory modification of that Act provided that the remuneration of the arbitrator shall be fixed by the Minister.

(3) A clerk may be appointed by the assessment committee but in the absence of such appointment the clerk of the Fishery Board shall be the clerk of the committee.

(4) A member of an assessment committee shall not act as such in relation to a fishery if he is owner or occupier of such fishery or the agent of the owner or occupier.

11.—(1) The yearly value of a fishery when determined shall be entered by the clerk of the Fishery Board in the register of assessments with a description of the fishery and the name and address of the owner or reputed owner thereof.

Register of assessments.

The clerk of the Fishery Board may upon the application of any person claiming to be owner of a fishery entered in such register and upon such evidence of ownership as appears to him to be sufficient insert the name and address of the applicant in the register as the owner of the fishery in the place of any person so entered as owner thereof.

(2) The register of assessments shall be kept at the office of the Fishery Board and be open to inspection free of charge by any person claiming bona fide to be an owner of a fishery registered or liable to be registered therein or by the agent of the owner or by any person liable to pay the contributions imposed under this Order on any such fishery and this right of inspection shall include a right to make copies of entries in the register.

12.—(1) The Fishery Board shall determine the date on which contributions imposed under this Order shall be payable and shall send by post notices of demand for payment of the contributions in the form (Form III) set forth in the Second

Recovery of contributions.

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A.D. 1930. Schedule hereto to the persons entered in the register of assessments as owners or reputed owners of fisheries.

(2) Contributions shall be payable by such persons at the time stated in the notice to the collector appointed by the Fishery Board to receive such contributions provided that if the collector is unable to ascertain the owner of any fishery or if the owner of any fishery makes default in payment of a contribution the contribution may be recovered from the occupier of such fishery as hereinafter provided.

(3) In any case where the collector cannot ascertain the owner of a fishery or the owner of a fishery is in default in payment of a contribution the Fishery Board shall send by post a notice in the form (Form IV) set forth in the Second Schedule hereto to the occupier of such fishery and the contribution shall be paid by the occupier to the collector at or before the time stated in the notice and shall be recoverable in a summary manner by the Fishery Board without prejudice to any right of the occupier to be reimbursed by the owner the amount thereof.

(4) In any proceedings for the recovery of a contribution a certificate in the form (Form V) set forth in the Second Schedule to this Order purporting to be signed by the clerk of the Fishery Board shall be sufficient evidence of the facts therein stated and unless the contrary is proved the person entered in the register of assessments as owner or reputed owner of a fishery shall for the purpose of any such proceedings be deemed to be owner of the fishery.

Apportion-
ment &c. of
assessments.

13.—(1) Subject as herein provided the assessment committee shall on the application of any person claiming to be the owner of a fishery liable to be assessed under this Order proceed as soon as is practicable to—

- (i) determine the yearly value of the fishery in the manner hereinbefore provided if it has not been determined either separately or in one assessment with another fishery; or
- (ii) apportion the assessed yearly value between the fishery of the applicant and any other fishery included in the same assessment; or
- (iii) re-determine the yearly value of the fishery.

(2) In the case of apportionment notice of the application shall be given to the owner of any other fishery included in the same assessment and the committee shall apportion the yearly value between the fisheries but the owner of any fishery may by notice in writing delivered or sent by post to the clerk of the Fishery Board within seven days after receipt of notification of

the apportionment require the apportionment to be made by a valuer appointed by the Minister and the apportionment shall thereupon be so made The remuneration of the valuer shall be fixed by the Minister and be paid by such one of the owners of the fisheries or by such owners in such shares as the valuer shall direct. A.D. 1930.

(3) The yearly value of a fishery may be re-determined from time to time without an application by the owner thereof Provided that no re-determination shall be made until after the expiration of three years from the date of the previous determination unless the owner consents to the making of it or unless by the making or revocation of a byelaw the yearly value of the fishery is increased or diminished.

(4) The provisions of subsection (2) of section 10 of this Order shall apply in the case of a re-determination under this section.

14. Subject to the provisions of this Order the Fishery Board may expend any moneys in their hands on any matter they may think conducive to the maintenance improvement and development of the fisheries within the Fishery District Provided that the Fishery Board shall as far as practicable appropriate to the maintenance improvement or development of the fisheries for trout any moneys coming to their hand in respect of such fisheries after payment thereof of a fair proportion of the general expenses of administration of the Fishery Board. Powers of Fishery Board as to expenditure.

MODIFICATIONS IN RELATION TO FISHERIES IN THE FISHERY DISTRICT OF CERTAIN PROVISIONS OF THE SALMON AND FRESHWATER FISHERIES ACT 1923.

15. The sections or parts of sections of the Act of 1923 mentioned in the Third Schedule to this Order shall not apply to the Fishery Board or within the Fishery District. Application of provisions of Act of 1923.

16. The provisions of section 67 of the Act of 1923 relating to powers of water bailiffs shall in the case of any water bailiff appointed by the Fishery Board extend to the removal of dead or diseased fish from any waters in the Fishery District and to the disposal of the same as the Fishery Board direct and to the search and examination of any basket bag pocket or other receptacle which is capable of carrying or containing any instrument substance or article liable to forfeiture in pursuance of the Act of 1923 which there is reasonable cause to suspect at the time has been used or is intended to be used to take or kill salmon trout or freshwater fish. Modification of section 67 of Act of 1923.

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—
Modification
of sections
16 and 20 of
Act of 1923.

17. The power of the Fishery Board to acquire obstructions and to construct and alter fish passes conferred by sections 16 and 20 of the Act of 1923 shall extend to the acquisition of natural obstructions and to the erection and maintenance of a fish pass on or adjacent thereto.

TRANSITORY AND OTHER PROVISIONS.

Abolition of
existing
Fishery
District.

18. The certificate of the Secretary of State dated the eighteenth day of January eighteen hundred and sixty-six constituting the fishery district of the River Coquet and the certificate of the Secretary of State dated the twenty-second day of December eighteen hundred and sixty-nine altering that district shall on the appointed day cease to have effect.

Abolition of
existing
Board.

19.—(1) The existing Board of Conservators of the fishery district of the River Coquet shall be abolished on the appointed day and all property acquired and liabilities incurred by that Board shall as from that day by virtue of this Order be transferred to and vested in the Fishery Board and the Fishery Board shall to all intents and purposes represent and be deemed a continuation of the existing Board and the clerk and all other officers of that Board shall become the officers of the Fishery Board and upon the same terms and conditions as heretofore.

(2) Any byelaw scale of licence duties notice or instrument made fixed given or executed by the existing Board shall upon such abolition take effect as if it had been made fixed given or executed by the Fishery Board but shall not in any other respect be altered or affected by this Order.

(3) The existing Board shall as soon as practicable after the confirmation of this Order carry into effect the provisions of this Order as to the assessment of the private fisheries in the Fishery District and for this purpose the provisions of this Order relating to such assessment (including the power to exempt from assessment for a specified period) shall apply to the existing Board and to the clerk of that Board. Notice of intention to make an assessment of fisheries shall be given as soon as practicable by the existing Board by advertisement in two successive issues of some newspaper or newspapers circulating in the Fishery District in the form (Form I) set forth in the Second Schedule hereto.

(4) The time and place of the first meeting of the Fishery Board shall be fixed by the existing Board or if they fail so to do by the Minister and for the purposes of the nomination and election of the first elected members of the Fishery Board the existing Board shall in the application of this Order be substituted for the Fishery Board.

[20 & 21 GEO. 5.] *Coquet Fisheries* [Ch. xcv.]
Provisional Order Confirmation Act, 1930.

(5) For the purpose of the first election under article 5 of this Order the Minister may by Order determine the day for the nomination and election of representative members of the Fishery Board. A.D. 1930.

(6) The Fishery Board shall come into office on the appointed day and the members of the existing Board shall remain in office until that date.

20. The Fishery Board constituted by this Order shall pay to the applicants out of any funds in their hands on account of the costs incurred by the applicants in obtaining this Order such sum as may be approved by the Minister. Costs of Order.

A.D. 1930.

SCHEDULES.

FIRST SCHEDULE.

AREA WITHIN WHICH THE ORDER APPLIES.

The area comprising—

- (1) Such parts of the administrative county of Northumberland as lie within the natural watershed of the River Coquet and its tributaries :
- (2) The foreshore lying between a line drawn true east from the north side of Howick Burn Mouth in the parish of Howick and a line drawn true east from Newbiggin Church Point but excluding any part of the foreshore of the estuary of the River Aln above or to the westward of a line drawn true south from the ferry landing at Alnmouth :
- (3) Such parts of the sea within which His Majesty's subjects have the exclusive right of fishing as lie between the said line drawn true east from the north side of Howick Burn Mouth in the parish of Howick and the said line drawn true east from Newbiggin Church Point.

SECOND SCHEDULE.

FORMS.

FORM I.

Salmon and Freshwater Fisheries Act 1923.

River Coquet Fishery District Order 1929.

Notice of Intention to Make an Assessment of Fisheries.

Notice is hereby given that an assessment committee has been appointed by the River Coquet Fishery Board to assess the yearly value of all private fisheries in the River Coquet Fishery District constituted by the River Coquet Fishery District Order 1929 which are of the yearly value of five pounds or upwards and liable to be assessed.

Owners of fisheries which may be liable to be assessed are requested to communicate with the undersigned giving particulars of their fisheries. (Name and address of clerk.)

FORM II.

A.D. 1930.

Salmon and Freshwater Fisheries Act 1923.

River Coquet Fishery District Order 1929.

Notice of Provisional Assessment of Fisheries.

To

Notice is hereby given that the assessment committee appointed under the River Coquet Fishery District Order 1929 have provisionally assessed the yearly value of the fishery described in the schedule to this notice at £ s. d.

If no objection to such provisional assessment by or on your behalf is received by the undersigned within twenty-one days after the date of this notice the yearly value of the fishery will for the purposes of the said Order be deemed to have been determined by agreement at the amount above stated and in default of any objection you will be entered in the register of assessments as the owner of the fishery.

If notice of objection is duly given you will be entitled to have the value determined in default of agreement by arbitration.

(Signed) *A.B.*

Clerk of the Assessment Committee.

Schedule to Notice.

Description of Fishery as proposed to be entered in Register
of Assessments.

(Date on which the Notice is sent)

FORM III.

Salmon and Freshwater Fisheries Act 1923.

River Coquet Fishery District Order 1929.

*Notice of Demand for Payment of Contribution by the Owner or
Reputed Owner of a Fishery.*

To

Notice is hereby given that the River Coquet Fishery Board have imposed a contribution to be paid by the owners of the whole of the fisheries in the above-mentioned district liable to be

[Ch. xciv.] *Coquet Fisheries* [20 & 21 Geo. 5.]
Provisional Order Confirmation Act, 1930.

A.D. 1930. assessed and have directed that the same shall be payable on the
day of to
of the collector appointed to receive the same.

The amount payable in respect of such contribution by the
owner of the fishery described in the schedule to this notice is
£ s. d. which is hereby required to be paid to the
said collector on or before the above-mentioned date.

(Signed) A.B.

Clerk of the River Coquet Fishery Board.

Dated 19 .

Schedule to Notice.

Description of Fishery as entered in Register of Assessments.

FORM IV.

Salmon and Freshwater Fisheries Act 1923.

River Coquet Fishery District Order 1929.

*Notice of Demand for Payment of a Contribution by the Occupier
of a Fishery.*

To

Notice is hereby given that the River Coquet Fishery Board
have imposed a contribution upon the owner of the fishery
described in the schedule to this notice amounting to £
and that *(the collector appointed by the Board to receive the
contribution is unable to ascertain the owner of the said fishery)
*(the owner of the said fishery has made default in paying the
amount due from him).

* Delete
words in-
applicable.

And also take notice that the said sum of £ is required
under the provisions of the above-mentioned Order to be paid
by the occupier of the said fishery on or before the
day of to of
the said collector.

(Signed)

Clerk of the River Coquet Fishery Board.

Dated the day of

Schedule to Notice.

A.D. 1930.

Description of Fishery as entered in Register of Assessments.

FORM V.

Salmon and Freshwater Fisheries Act 1923.

River Coquet Fishery District Order 1929.

*Certificate as to Contribution imposed by the River Coquet
Fishery Board.*

I A.B. hereby certify that the amount of £ s. d. is payable by the owner of the fishery described in the schedule to this certificate in respect of a contribution duly imposed by the River Coquet Fishery Board to
of
the collector appointed by that Board to receive the same and that the person entered in the register of assessments as owner of such fishery is
of

(Signed) A.B.

Clerk of the River Coquet Fishery Board.

Schedule to Certificate.

Description of Fishery as entered in Register of Assessments.

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THIRD SCHEDULE.

PROVISIONS WHICH BY THIS ORDER ARE DECLARED TO BE
INAPPLICABLE TO THE FISHERY BOARD OR WITHIN THE
FISHERY DISTRICT.

Act.	Section.	Subject.
Salmon and Fresh- water Fisheries Act 1923.	Section 45 - Section 50 -	Constitution of Fishery Board. Qualification of ex-officio members.

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